



File No.: EXP202213459

RESOLUTION No.: R/00222/2023

Considering the complaint filed on October 26, 2022, with this Agency by A.A.A., (hereinafter the complainant), against CAIXABANK PAYMENTS & CONSUMER EFC, EP, S.A.U., (hereinafter the respondent), for not having duly attended to their right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The complainant exercised the right of access against the respondent with NIF A08980153, and their request, as stated by the complainant, did not receive the legally established response. The complainant states that on June 21, 2022, they requested the respondent to modify their contact details, and the entity proceeded with the required update. On the same date and in the same document, they requested access to their personal data subject to processing and to know the recipients of the same, as well as a copy of the signed contract and a document of settlement of the amortization schedule of the financial loan.

The complainant provides various documents related to the complaint filed with this Agency and regarding the exercise of the right exercised.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of claims filed with the AEPD, consisting of transferring them to the Data Protection Delegates designated by the controllers or processors of the data, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the respondent entity for analysis and to respond to the complainant and this Agency within one month.

The respondent has responded to the transfer of the complaint made by this AEPD in an incomplete manner, as they have not provided the requested data in the right of access.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow understanding that the claims of the complainant were satisfied. Consequently, on January 26, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing and informed the parties that the maximum period to resolve this procedure, which is understood to have been initiated by said admission agreement, will be six months.

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The aforementioned agreement granted the entity being claimed the opportunity for a hearing, so that within a period of ten working days it could present the allegations it deemed appropriate. This entity has submitted allegations stating that it has addressed the right and has provided a letter addressed to the claimant dated February 23, 2023, to substantiate this.

And thus they state:

“...In response to the admission agreement and the process of allegations, a new letter has been sent to Ms. A.A.A., responding to and addressing the exercise of the right of access, to the postal address of the same that is recorded in the systems of CaixaBank Payments & Consumer, which is provided as Document No. 3. Additionally, along with this letter, another document has been sent again by CaixaBank Payments & Consumer: a. Access right form (Attached as Annex I to Document No. 3). b. Copy of the consumer goods financing loan contract, dated August 31, 2017 (Attached as Annex II to Document No. 3). c. Amortization schedule (Attached as Annex III to Document No. 3). d. List of unpaid debts - overdue and returned receipts - (Attached as Annex IV to Document No. 3)...”

FOURTH: After examining the allegations presented by the entity being claimed, they are to be

forwarded to the claiming party, so that, within a period of fifteen working days, it may formulate any allegations it considers appropriate.

The claiming party presents allegations to state that the requested right has been addressed incompletely.

Namely:

“...It is false that they responded to my first claim by sending the required documentation; they only sent an amortization schedule, nothing more. After my complaint to the Bank of Spain, in their second letter they sent the contract and two amortization schedules. I requested that they specify to whom they had transferred my data; they denied having transferred it to anyone, but they did transfer it to the Asnef entity. And that transfer had occurred before they claimed that they had NOT transferred it to anyone. To this day, I am still waiting for my right of access, of which I sent them a copy plus the proof of delivery of the certified letter through the postal service...”

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of section 2 of article 56 in relation to section 1 f) of article 57, both of the Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in article 47 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD).

SECOND: In accordance with the provisions of article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in article 57, including the enforcement of the Regulation.

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to promote awareness among the controllers and processors regarding the obligations that fall upon them, as well as to address the complaints presented by an interested party and investigate the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, the complaint was forwarded to the responsible entity for analysis, requiring them to respond to this Agency within one month and to demonstrate that they have provided the complainant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

The purification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, whose exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative

responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure based on any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure, the guarantees and rights of the complainant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

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The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party falls on the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, in accordance with Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive on more than one occasion within a period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that entails a disproportionate cost, which must be borne by the affected party.

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about

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Transfers of personal data to a third country or to an international organization.

The possibility of obtaining a copy of the personal data subject to processing shall not negatively affect the rights and freedoms of others.

In the case analyzed here, the complainant exercised their right of access and, upon receiving a response from the respondent that they considered incomplete, filed a complaint with this Agency. The complaint is forwarded to the respondent for clarification of what occurred and to address the right, and after analyzing all the responses provided, it must be decided whether the right has been addressed or, on the contrary, as the complainant asserts, it is still pending.

There is no doubt that the respondent has provided a large amount of documentation throughout the procedure; however, this Agency must make a decision based on the documentation provided on one hand, compare it with what was requested by the complainant, and on the other hand, verify if it falls within what is stipulated by the regulations as the right of access.

In this case, the respondent states that they provided the interested party, on February 23, 2023, the requested information related to the amortizations, but they provide the delivery receipt dated February 2, 2023, that is, the delivery receipt of previous submissions that refer to a response that was incomplete and that prompted the initiation of the procedure.

As the complainant does not acknowledge having received the last document that the respondent claims to have sent on February 23, 2023, the complaint must be upheld, since the respondent does not prove having sent the complainant complete information regarding the amortizations.

Therefore, in the case analyzed here, with the documentation present in the procedure, as can be inferred from the allegations made and the documentation provided by the respondent in the process of transferring the complaint, it is verified that the requested right of access has not been fully addressed.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by A.A.A. and to instruct CAIXABANK PAYMENTS & CONSUMER EFC, EP, S.A.U. with NIF A08980153, to send to the complainant, within ten working days following the notification of this resolution, a certification that addresses the requested right of access or a reasoned denial indicating the reasons why the request cannot be addressed, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of art. 83.6 of the GDPR, classified as very serious for the purposes of prescription in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to CAIXABANK PAYMENTS & CONSUMER EFC, EP, S.A.U.

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In accordance with the provisions established in article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions established in article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the

aforementioned Law.

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